

Cajetan Commentary (LA-EN)

Commentaria in Summam Theologiae, II^a-II^{ae} q. 1 aa. 3 et 10 (Commentary on the *Summa Theologiae*, II-II q. 1 aa. 3 and 10)

by Thomas de Vio Cajetan, O.P. (1469–1534), commentary on the *Secunda Secundae* completed 1517

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- Transcribed from the Leonine edition: *Sancti Thomae Aquinatis Opera Omnia iussu impensaue Leonis XIII P.M. edita, Tomus VIII (Romae: Ex Typographia Polyglotta S.C. de Propaganda Fide, 1895), pp. 12–13 and 23–25.*
- OCR of the original text by AI (claude-fable-5), from page images.
- Translation of the original text performed by AI (claude-fable-5).
- Last Edit: July 3, 2026.
- Version: 1.0
- Selection pages: 12-13, 23-25 (Leonine pagination)

Note on this selection: from Suárez (1583) onward, Cajetan is listed on the negative side of the question whether it is *de fide* that this particular man is pope, with the locus “in 2-2, q. 1, art. 3, in response to the 4th.” Both that commentary and the commentary on a. 10 are given here in full so the reader may judge. Three observations. (1) The sentence attributed to him (“it is not *de fide* that this man is pope”) does not occur; what the a. 3 commentary contains is a polemic against scrupulous believers who would venerate the host — or the pope — only conditionally, on account of possible occult sacramental defects (invalid baptism, defective ministerial intention); Cajetan answers that human-mode certainty suffices and obliges an absolute act. Elections, antipopes, and the Church’s acceptance are never mentioned; the whole-Church case is never distinguished from the individual believer’s estimation. (2) The a. 10 commentary affirms the premises later used for the affirmative side: the whole Church cannot err; the Church’s adherence to Nicholas V against the surviving antipope Felix “notoriously testified” where legitimacy lay; and “never did the Roman Pontiff succumb, never was he deserted by the Church.” Acceptance there functions as testimony against conciliarism, not as a formal criterion certifying a claimant — and what a council cannot touch is a pope “*certum et indubitatum*,” the certainty itself being presupposed. (3) Under the distinction this repository observes, denying the *de-fide* status of “this man is pope” is not a denial that

the Church's peaceful acceptance infallibly certifies him: in these texts Cajetan does neither — the question of universal peaceful acceptance is simply never posed. His fuller treatment of the doubtful pope is in De comparatione auctoritatis Papae et concilii (Rome, 1511), cross-referenced in the a. 10 commentary.

On II-II q. 1 a. 3 — Commentary of Cardinal Cajetan (pp. 12–13)

<i>Latin</i>	<i>English</i>
<i>Context — S. Thomas, ad 4:</i> Ad quartum dicendum quod fides credentis non refertur ad has species panis vel illas: sed ad hoc quod verum corpus Christi sit sub speciebus panis sensibilis quando recte fuerit consecratum. Unde si non sit recte consecratum, fidei non suberit propter hoc falsum. IN articulo tertio nota, novitie, circa rationem allatam in littera, quod aliud est sub vero esse falsum; et aliud est sub vero esse cognitionem falsi. Primum enim significat oppositum esse sub opposito tanquam formali seu proprio activo aut fine: quod est impossibile. Secundum autem significat unum oppositorum esse rationem cognoscendi reliquum, aut fugiendi vel excludendi: et hoc est verum. In littera autem primum assumitur, non secundum. Quamvis enim fides sit qua assentimus vero et dissentimus opposito [impr. proposito] falso; et similiter caritas qua amamus bonum et odio habemus malum contrarium caritati; et ponendo ens, puta album, excludatur non-ens oppositum, puta non-album: fidei tamen, ex hoc ipso quod assentit veritati ut medio assentiendi, repugnat assentire falso, quia verum non ducit ad falsum; et similiter caritas, quia amat ratione bonitatis, non amat aliquid malum, quia bonum non est medium ducens ad malum;	<i>Context — St. Thomas, ad 4:</i> To the fourth it must be said that the faith of the believer is not referred to these or those species of bread, but to this: that the true body of Christ is under the species of sensible bread when it has been rightly consecrated. Hence if it be not rightly consecrated, no falsehood will on that account underlie the faith. In the third article note, novice, concerning the argument brought in the text, that it is one thing for a falsehood to stand under the true, and another for a cognition of the false to stand under the true. The first signifies that one opposite stands under the other opposite as under its formal or proper active principle or end — which is impossible. The second signifies that one of two opposites is the means of knowing the other, or of fleeing or excluding it — and this is true. In the text the first is assumed, not the second. For although faith is that by which we assent to the true and dissent from the opposed false; and likewise charity that by which we love the good and hold in hatred the evil contrary to charity; and although, by positing a being — say, white — the opposed non-being is excluded — say, non-white: nevertheless it is repugnant to faith, from the very fact that it assents to truth as its means of assenting, to assent to the false, because the true does not lead to the false; and likewise charity, because it loves by reason of goodness, loves nothing evil, because the good is not a means leading to evil; and likewise being is

<i>Latin</i>	<i>English</i>
et similiter ens non est per se positivum oppositi non-entis in quocumque genere.	not of itself positive of the opposed non-being in any genus.
II. In eodem articulo in responsione ad primum, si non intelligis, novitie, quomodo falsa opinio stat cum operatione iustitiae et similium, animadverte quod contingit aliquem falso credere, absque culpa sua, aliquem sibi esse debitorem vel e converso, et operari ad illum secundum iustitiam; et similiter credere se non indigentem cibo aut potu, et operari secundum temperantiam; et sic de aliis: et videbis virtutes appetitivas non totaliter excludere falsam opinionem de eo circa quod agitur, ut in littera dicitur.	II. In the same article, on the response to the first objection: if you do not understand, novice, how a false opinion stands together with the operation of justice and the like, observe that it happens that someone falsely believes, without any fault of his own, that a certain man is his debtor, or conversely, and acts toward him according to justice; and likewise that he believes himself not to need food or drink, and acts according to temperance; and so of the rest: and you will see that the appetitive virtues do not totally exclude false opinion about that with which the action is concerned, as is said in the text.
III. In responsione ad quartum eiusdem articuli adverte diligenter ne ex hac responsione fallaris: audiens enim quod fides non respicit has vel illas species, sed ad hoc quod corpus Christi sub speciebus rite consecratis sit; et subiungens quod credere has vel illas species esse rite consecratas relinquatur humanae aestimationi, propter quod, si in hoc erratur, nullum praeiudicium fit fidei; incidas in errorem dicentium quod hostia quae adoranda offertur in ecclesia adoranda est sub conditione si est vere consecrata. Hic enim accidit illud: <i>Trepidaverunt timore ubi non fuit timor. [marg.: Ps. XIII, vers. 5.]</i>	III. On the response to the fourth objection of the same article, take diligent care lest you be deceived by this response. For hearing that faith does not regard these or those species, but regards this — that the body of Christ is under species that have been duly consecrated; and adding that to believe that these or those species have been duly consecrated is left to human estimation, on account of which, if error occurs in this, no prejudice is done to the faith — you may fall into the error of those who say that the host which is offered for adoration in church is to be adored under the condition “if it is truly consecrated.” For here comes to pass that word: <i>They trembled with fear where there was no fear</i> [Ps. 13:5].
Et ne absque ratione arguere hos videamur, declaratur hoc ratione, auctoritate et exemplo. Ratione quidem, quia actus humanus cadens super debita materia quando, sicut, ubi, etc., oportet, est bonus moraliter: sed actus voluntarius credentis absolute hanc hostiam esse	And lest we seem to censure these men without reason, the matter is made clear by reason, by authority, and by example. By reason: because a human act falling upon due matter — when, how, where, etc., it ought — is morally good; but the voluntary act of one believing absolutely that this host is consecrated is of this

<i>Latin</i>	<i>English</i>
consecratam est huiusmodi: ergo. Probatur minor. Quia cum, ut in pluribus saltem, sit verum hostias rite consecrari; et quod ut in pluribus invenitur, nisi impedimentum aliquod adsit, verificetur: consequens est ut, nullo apparente quovis modo impedimento, actus credentis feratur super materia debita, scilicet vero ut in pluribus et in hoc singulari non impedito, quantum apparet rationabiliter. Indisciplinati autem esset quaerere maiorem certitudinem in istis: ut patet in II <i>Metaphys.</i> — Ex parte quoque voluntatis idem apparet. Nam devotio et veneratio conditionalis minor est veneratione et devotione absolute. Nocet ergo devotioni iste timor. Auctoritas est Ecclesiae, quae instituit, in oratione quam sacerdos communionem sumpturus dicit, ut absolute fateatur hanc hostiam et hunc calicem continere corpus et sanguinem Christi, dum sacerdos dicit: <i>Libera me per hoc sacrosanctum corpus et sanguinem tuum a cunctis iniquitatibus</i> etc. Verba enim exterius absolute prolata sunt signa interioris mentis absolute credentis et venerantis. Exempla sunt cogentia. Nam manifeste adoramus Summum Pontificem absolute, et similiter alios episcopos. Et tamen, secundum istorum timorem, sub conditione essent venerandi: quia quis scit si iste fuit baptizatus; et si ille qui baptizavit eum habuit intentionem conferendi sacramentum baptismi? Et similiter sub conditione confitendum sacerdoti proprio, propter idem dubium. Immo et sacerdos quilibet sub conditione deberet absolvere et conficere	kind; therefore. The minor is proved: since it is true, at least as in the majority of cases (<i>ut in pluribus</i>), that hosts are duly consecrated; and what is found to hold in the majority of cases is verified unless some impediment is present: it follows that, when no impediment appears in any way, the act of the believer is borne upon its due matter — namely, upon what is true as in the majority of cases and not impeded in this singular instance, so far as rationally appears. Moreover, it would be the mark of an undisciplined mind to seek greater certitude in such matters, as is plain in <i>Metaphysics</i> II. — On the part of the will, too, the same appears: for conditional devotion and veneration is less than absolute veneration and devotion. Therefore this fear harms devotion. The authority is that of the Church, which has established, in the prayer which the priest says when about to receive Communion, that he confess absolutely that this host and this chalice contain the body and blood of Christ, when the priest says: <i>Deliver me by this most holy body and blood of thine from all my iniquities</i>, etc. For words outwardly uttered absolutely are signs of an interior mind absolutely believing and venerating. The examples are compelling. For manifestly we venerate the Supreme Pontiff absolutely, and likewise the other bishops. And yet, according to the fear of these men, they would have to be venerated under condition: for who knows whether this man was baptized, and whether he who baptized him had the intention of conferring the sacrament of baptism? And likewise one would have to confess under condition to one's own priest, on account of the same doubt. Nay more, every priest would have to absolve under condition, and confect the sacraments and do other things of

<i>Latin</i>	<i>English</i>
sacramenta et alia huiusmodi facere, propter simile dubium si ipse est vere baptizatus, vere ordinatus, et propter dubium de suscipiente. Haec enim omnia pendent ex intentione ministri Ecclesiae sicut consecratio hostiae. Et si (pro quia) haec sunt fatua, stultum quoque hoc esse quare non fatentur?	this kind under condition, on account of a similar doubt whether he himself is truly baptized, truly ordained, and on account of the doubt about the recipient. For all these things depend on the intention of the minister of the Church, just as the consecration of the host does. And since these things are silly, why do they not confess that this too is foolish?
Convincant quoque seipsos hi experientia, foris exprimendo conditionalem quam mente dicunt debere exprimi; et obedientiam praestent Papae, absolvant, consecrent, etc., explicando conditionem: et videbunt errorem suum. Non enim haec sunt <i>arcana Dei, quae non licet homini loqui</i> : sed, si tenetur homo mente conditionata haec facere, licite exprimet voce, ut patet in reiteratione baptismi dubii; tunc enim dicitur: <i>Si non es baptizatus, ego te</i> etc.	Let these men also convict themselves by experience, by expressing outwardly the condition which they say must be expressed in the mind: let them render obedience to the Pope, let them absolve, consecrate, etc., while making the condition explicit — and they will see their error. For these are not <i>secrets of God which it is not lawful for a man to utter</i> : rather, if a man were bound to do these things with a conditioned mind, he might lawfully express it with his voice, as appears in the repetition of a doubtful baptism, for then one says: <i>If thou art not baptized, I baptize thee</i> , etc.
Nulli ergo periculo se exponit adorando absolute: quoniam humano more certitudinem habet, et haec sufficit homini.	Therefore he who adores absolutely exposes himself to no danger: since he has certitude after a human manner (<i>humano more</i>), and this suffices for man.
[...]	[...]

On II-II q. 1 a. 10 — Commentary of Cardinal Cajetan (pp. 24–25)

<i>Latin</i>	<i>English</i>
IN articulis nono et decimo simul adverte diligenter quod Auctor pro eodem computat auctoritatem universalis Ecclesiae, generalis synodi et Papae: ut patet in utroque articulo in argumento ad oppositum. Et ratio est quia Papa est pastor et episcopus universalis Ecclesiae cum plenissima potestate. IN articulo decimo dubium primo occurrit circa minorem propositionem, scilicet: <i>Hoc autem</i>, scilicet determinare finaliter quae fidei sunt, <i>pertinet ad auctoritatem Summi Pontificis</i>. Nam quidam hoc non admittunt, ex eo quod Papa potest esse haereticus. — Et propter determinationem factam in Concilio Constantiensi [<i>arg.: Sess. IV, V.</i>]: quod scilicet Papa subest concilio universali in his quae sunt fidei. — Et quia <i>par in parem non habet imperium</i> [<i>arg.: Cap. Innotuit, de Elect.</i>]. Ac per hoc, unus Papa non ligat alium. Et consequenter determinatio facta per unum Papam in materia fidei non ligabit successores suos. Et sic, si huiusmodi successores tenerent contra determinationem huiusmodi, non essent haeretici. Quod est inconveniens maximum: quia sic respectu eiusdem determinati ab Ecclesia, noti, etc., unus fidelis esset haereticus et alius non; et determinatio quod est haeresis non esset determinatio simpliciter, sed respectu aliquorum, scilicet qui non sunt Romani Pontifices. II. Dubium secundo occurrit circa rationem subiectam in	On the ninth and tenth articles together, note diligently that the Author counts as one and the same the authority of the universal Church, of a general synod, and of the Pope, as is plain in both articles in the <i>Sed contra</i>. And the reason is that the Pope is pastor and bishop of the universal Church with fullest power. On the tenth article a doubt arises, first, about the minor proposition, namely: <i>But this</i> — namely, finally to determine the things that are of faith — <i>pertains to the authority of the Supreme Pontiff</i>. For some do not admit this, on the ground that the Pope can be a heretic; and because of the determination made in the Council of Constance [Sess. IV, V], namely that the Pope is subject to a universal council in the things that are of faith; and because <i>an equal has no command over an equal</i> [<i>cap. Innotuit, on Election</i>]. And thereby one Pope does not bind another; and consequently a determination made by one Pope in a matter of faith will not bind his successors. And thus, if such successors held contrary to such a determination, they would not be heretics. Which is a very great absurdity: because thus, with respect to the same point determined by the Church, known, etc., one believer would be a heretic and another not; and the determination that something is heresy would not be a determination simply, but only with respect to certain persons — namely, those who are not Roman Pontiffs. II. A doubt arises, secondly, about the reason underlying the text, namely

<i>Latin</i>	<i>English</i>
littera, scilicet quod <i>unitas fidei servari non posset in tota Ecclesia nisi quaestio exorta de fide determinetur per eum qui toti Ecclesiae praeest, idest Summum Pontificem</i>. Haec namque propositio in ultima sui parte non est vera. Quoniam quaestio de fide exorta potest determinari per communitatem Ecclesiae, seu concilium generale. Communitas enim Ecclesiae praesidet toti Ecclesiae, sicut communitas civitatis toti civitati: quia et princeps vices communitatis gerit, et leges et consuetudines ab ipsa multitudinis unitate institutionem et destitutionem sortiuntur. Et sic in littera, dum a praesidente totius Ecclesiae ad Papam descenditur, sophisma committitur: quoniam ipsa Ecclesiae communitas, quae in concilio generali invenitur, praesidens superior est, et ad eam spectat finalis determinatio de fide, utpote quae errare non potest. III. Ad horum brevem intelligentiam (quoniam in tractatu speciali <i>de Auctoritate Papae et Concilii</i> [marg.: <i>Rom. 1511. — Opuscula Omnia, Tom. I, Tract. I.</i>] haec tractavimus) sciendum est quod, quia papatus in hoc differt a ceteris humanis principatibus quod reliqui ab ipsa multitudine originem et potestatem habent (multitudo namque, cessante violentia fraudeque, de iure naturae libera est, et constituit sibi caput cum illa potestate quae multitudini videtur), papatus autem non est ab Ecclesia, sed a Deo immediate, ita quod nec ab Ecclesia ortum habet nec potestatem, tam principaliter quam ministerialiter (Iesus Christus namque, verus Deus, non per	that <i>the unity of faith could not be preserved in the whole Church unless a question arisen concerning the faith were determined by him who presides over the whole Church, that is, the Supreme Pontiff</i>. For this proposition, in its last part, is not true. For a question arisen concerning the faith can be determined by the community of the Church, or a general council. For the community of the Church presides over the whole Church, as the community of a city over the whole city: since the prince acts in the community's stead, and laws and customs receive their institution and abrogation from the very unity of the multitude. And thus in the text, when one descends from "him who presides over the whole Church" to the Pope, a sophism is committed: since the community of the Church itself, which is found in a general council, is the presiding superior, and to it belongs the final determination concerning the faith, inasmuch as it cannot err. III. For a brief understanding of these things (since we have treated them in a special treatise <i>On the Authority of Pope and Council</i> [Rome, 1511]), it must be known that — because the papacy differs from other human principates in this, that the others have their origin and power from the multitude itself (for the multitude, where violence and fraud cease, is by the law of nature free, and constitutes for itself a head with that power which seems good to the multitude), whereas the papacy is not from the Church but from God immediately, so that it has neither origin nor power from the Church, whether principally or ministerially (for Jesus Christ, true God, created the papacy and the Pope not through the intermediate ministry of the Church or of the Apostles, but by Himself immediately, when He said to Peter: <i>Feed my sheep</i>, John,

<i>Latin</i>	<i>English</i>
Ecclesiae aut Apostolorum ministerium medium, sed per seipsum immediate papatum creavit et Papam, cum dixit Petro: <i>Pasce oves meas</i>, Ioan. ult.); et ex hoc sequitur quod Papa Ecclesiae praesidet sic ut non solum singula membra, sed ipsa communitas Ecclesiae, subsint Papae (per hoc enim solum communitati multitudinis supra principem potestas reservatur quia ab ipsa multitudine principatus et princeps dependet, hoc autem in papatu et Papa locum non habere iam patet): solus igitur Papa praeest toti Ecclesiae, et non e converso, ut congregatio Constantiensis, unius tantum Obedientiae, sine suo Papa dubio, tempore schismatis, usurpans in se universalem Ecclesiam, quam nec simpliciter nec secundum praesentem tunc Ecclesiae statum repraesentabat, decrevisse videtur [<i>marg.: Sess. IV, V.</i>]. Propter quae non est de decretis illis curandum. In cuius signum, quidquid etiam ab omnibus Obedientiis simul, sede vacante, ibi statutum postmodum est, tanquam essent supra Papam, nullum habuit effectum hactenus nisi schisma iam bis inde ortum, scilicet semel sub Eugenio IV et iterum sub Iulio II. Et tandem semper oportuit omnes succumbere et subiicere se Romano Pontifici, ipsa veritate et Ecclesia Catholica cogente. Et nunquam Romanus Pontifex succubuit, nunquam ab Ecclesia derelictus est: quia nunquam illis decretis fuit subditus. IV. Et de schismatis quidem primi termino tota Ecclesia testatur in adoratione Nicolai V, qui successit immediate defuncto Eugenio. Ex eo enim	last chapter); and from this it follows that the Pope presides over the Church in such wise that not only the individual members, but the very community of the Church, are subject to the Pope (for power over the prince is reserved to the community of the multitude only for this reason, that the principate and the prince depend on the multitude itself; but that this has no place in the papacy and the Pope is already plain): therefore the Pope alone presides over the whole Church, and not conversely — as the assembly of Constance, of one Obedience only, without its own doubtful Pope, in time of schism, usurping to itself the universal Church, which it represented neither simply nor even according to the then-present state of the Church, appears to have decreed [Sess. IV, V]. Wherefore those decrees are not to be heeded. In sign of which, whatever was afterwards enacted there, even by all the Obediences together, the see being vacant, as though they were above the Pope, has had no effect down to the present except a schism twice since arisen therefrom, namely once under Eugene IV and again under Julius II. And in the end all always had to succumb and submit themselves to the Roman Pontiff, truth itself and the Catholic Church compelling. And never did the Roman Pontiff succumb, never was he deserted by the Church: because he was never subject to those decrees. IV. And as to the end of the first schism, the whole Church bears witness in the adoration of Nicholas V, who succeeded immediately upon Eugene's death. For from this — that,

<i>Latin</i>	<i>English</i>
quod superstitem Felicem, qui a Basiliensi concilio constitutus fuerat Papa, deposito atque combusto Eugenio in sua statua, non recognovit Ecclesia in Papam, etiam defuncto Eugenio, sed Nicolaum a Cardinalibus electum, superstite, ut dictum est, Felice, adoravit; notorie testata est concilium non esse supra Papam, concilium nihil posse contra Papam certum et indubitatum ac Catholicum. In termino quoque secundi schismatis universalis Ecclesia idem multipliciter testata est. Nam licet fuerit indictum prius conciliabulum Pisanum contra Papam Iulium, auctoritate concilii Constantiensis [<i>marg.: Sess. XXXIX.</i>] in capitulo <i>Frequens</i>, a multis cardinalibus et inchoatum, adeo ut processerit usque ad suspensionem Iulii; vidimus tamen sub Leone X, qui vivit et regnat, omnes mundi principes, praelatos et ecclesias concilio Lateranensi, quod adhuc durat, adhaesisse, et ipsum solum unicum ac verum concilium confiteri; et concilio Pisano renuntiare eos qui adhaeserant, tanquam congregato a non habentibus potestatem congregandi illud. Vidimus etiam cardinales qui Pisano adhaerebant concilio professos publice se schismaticos, et conciliabulum illud Pisanum damnasse in haec verba specialiter et expresse: <i>Nos, olim nube schismatis obducti, supernae illustrationis lumine et gratia serenati, compertoque schismatis laqueo quo tenebamur, etc., Pisanum conciliabulum, eiusque indictionem ac omnia et singula in eo gesta, anathematizamus ac pronuntiamus, credimus ac</i>	while Felix (who had been made Pope by the council of Basel, Eugene having been deposed and burned in effigy) was still living, the Church did not recognize him as Pope even after Eugene's death, but adored Nicholas, elected by the Cardinals, Felix, as was said, still surviving — she has notoriously testified that a council is not above the Pope, and that a council can do nothing against a certain and undoubted and Catholic Pope. At the end of the second schism too the universal Church testified the same in many ways. For although the Pisan conciliabulum against Pope Julius had earlier been convoked, on the authority of the Council of Constance [<i>Sess. XXXIX</i>] in the chapter <i>Frequens</i>, and set in motion by many cardinals, so far that it proceeded even to the suspension of Julius; yet we have seen under Leo X, who lives and reigns, all the princes of the world, the prelates and the churches adhere to the Lateran Council, which still continues, and confess it alone to be the sole and true council; and those who had adhered to the council of Pisa renounce it, as having been convoked by men not having the power to convoke it. We have seen also the cardinals who adhered to the Pisan council publicly profess themselves schismatics, and condemn that Pisan conciliabulum in these words, specially and expressly: <i>We, formerly overspread by the cloud of schism, now made serene by the light and grace of supernal illumination, and having discovered the snare of schism in which we were held, etc., anathematize the Pisan conciliabulum, its convocation, and each and every act done in it, and pronounce, believe and simply confess them null and void, of no force or moment, done and performed by men having no</i>

<i>Latin</i>	<i>English</i>
<i>simpliciter confitemur irrita et inania ac nullius roboris vel momenti, et a non habentibus auctoritatem gesta et facta, quin potius temeritate praesumpta.</i> Haec illi in schedula ab ipsis publice lecta in consistorio die Lunae, 27 [var. 22] die mensis Iunii 1513, coram Leone X. Ex quibus patet quod nec tota Ecclesia simul congregata in suis praelatis absque Romano Pontifice, ut fuit in constitutione capituli <i>Frequens</i> concilium Constantiense, ut patet in XXXIX sessione eiusdem, potest aliquid supra Papam. Et capitulum illud, utpote Apostolica Sede vacante factum, contra iura etiam canonica [<i>marg.: Cap. Novit ille, Ne Sede Vacante.</i>], quibus cavetur quod sede vacante nihil innovandum est, quia deest episcopus qui possit suam iurisdictionem tueri, nihil valet adversus Papae potestatem. Et confirmatum est hoc in Lateranensi isto concilio, inter cuius decreta [<i>marg.: Sess. XI.</i>] sub Leone X habentur haec verba: <i>Cum etiam solum Romanum Pontificem pro tempore existentem, tanquam auctoritatem supra omnia concilia habentem, conciliorum indicendorum, transferendorum ac dissolvendorum plenum ius et potestatem habere, nedum ex sacrae Scripturae testimonio, dictis sanctorum Patrum, ac aliorum Romanorum Pontificum sacrorumque canonum decretis, sed propria etiam eorundem conciliorum confessione manifeste constet.</i> Haec ibi. Ex quibus habes concilium ipsum fateri Papam supra omnia concilia habere auctoritatem, et ideo posse indicare, transferre, etc.	<i>authority</i> — <i>nay rather presumed out of temerity.</i> These things they declared in a schedule publicly read by them in consistory on Monday, the 27th [var. 22nd] day of the month of June, 1513, before Leo X. From which it is plain that not even the whole Church gathered together in her prelates without the Roman Pontiff — as the Council of Constance was in the enactment of the chapter <i>Frequens</i>, as appears in its 39th session — can do anything over the Pope. And that chapter, as made while the Apostolic See was vacant, contrary also to the canon laws [<i>cap. Novit ille, Ne Sede Vacante</i>] by which it is provided that while the see is vacant nothing is to be innovated, since the bishop who could defend his own jurisdiction is lacking, is of no force against the power of the Pope. And this has been confirmed in this present Lateran council, among whose decrees under Leo X [Sess. XI] are found these words: <i>Since it also manifestly stands — not only from the testimony of sacred Scripture, the sayings of the holy Fathers and of other Roman Pontiffs, and the decrees of the sacred canons, but from the very confession of those same councils — that the Roman Pontiff alone for the time being, as having authority over all councils, has full right and power to convoke, transfer and dissolve councils.</i> Thus far the council. From which you have the council itself confessing that the Pope has authority over all councils, and therefore can convoke, transfer, etc.

<i>Latin</i>	<i>English</i>
V. Et quoniam constat quod determinatio constitutiva habens vim coactivam respectu totius ad eius solius auctoritatem spectat qui praesidet toti, alioquin coactivam vim non haberet respectu totius; ideo secundi dubii moti iam patet solutio. Auctor namque supponit quod verissimum est, scilicet solum Papam praeesse Ecclesiae universali (unde et Episcopus dicitur et est Ecclesiae Catholicae), auctoritatemque universalis Ecclesiae et concilii principaliter et totaliter residere in Papa in determinando ea quae sunt fidei. Et licet, ut in primo proponitur dubio, Papa ut singularis persona possit errare in fide; ut Papa tamen, iudicando et definiendo quid tenendum ab Ecclesia sit de fide, errare non potest. Quod ex eo convincitur quia omnes fatemur quod tota Ecclesia errare non potest, propter verbum Christi, Matth. ult., <i>Ecce ego vobiscum sum omnibus diebus usque ad consummationem saeculi</i>: et Papa determinante iudicialiter et definitive aliquid esse haereticum et ab Ecclesia pro haeresi habendum, constat quod omnes tenemur acceptare, et haereticus censeretur quicumque de cetero teneret oppositum pertinaciter: tota igitur Ecclesia errare posset sequens determinationem Papae, si Papa in tali definitione posset errare. Credendum est igitur quod promissionem Ecclesiae factam a Christo, scilicet, <i>Spiritus Sanctus docebit vos omnem veritatem</i>, Ioan. XIV, ipse, cui non est difficilius per unum quam per multitudinem adimplere, per unum caput totius Ecclesiae	V. And since it is certain that a constitutive determination having coercive force with respect to a whole pertains to the authority of him alone who presides over the whole — otherwise it would not have coercive force with respect to the whole — the solution of the second doubt raised is now plain. For the Author supposes what is most true, namely that the Pope alone presides over the universal Church (whence he is called, and is, Bishop of the Catholic Church), and that the authority of the universal Church and of a council resides principally and totally in the Pope in determining the things which are of faith. And although, as is proposed in the first doubt, the Pope as a singular person can err in the faith, yet as Pope — in judging and defining what is to be held by the Church concerning the faith — he cannot err. This is proved from the fact that we all confess that the whole Church cannot err, on account of Christ's word, Matthew, last chapter: <i>Behold, I am with you all days, even to the consummation of the world</i>; and when the Pope judicially and definitively determines that something is heretical and is to be held by the Church as heresy, it is certain that all of us are bound to accept it, and whoever thereafter pertinaciously held the opposite would be accounted a heretic: therefore the whole Church could err in following the determination of the Pope, if the Pope could err in such a definition. It must therefore be believed that the promise made by Christ to the Church, namely <i>The Holy Spirit will teach you all truth</i> (John 14 [v. 26; 16:13]), He — for whom it is not more difficult to fulfill it through one than through a multitude — fulfills through the one head of the whole Church, so that the <i>law of divinity</i> may be preserved,

<i>Latin</i>	<i>English</i>
adimpleat, ut <i>lex divinitatis</i> servetur, quae inferiora per media et media per summa gubernat [<i>marg.: Dionys. Eccl. Hier., cap. V; Cael. Hier., cap. VII.</i>]. Et qua ratione dedit Ecclesiae principatum monarchicum supra totius Ecclesiae vires, eadem ratione monarchae illi potestatem definiendi quae opportuna sunt dedit absque defectu: Deum enim minus quam naturam deficere decet in necessariis. Ad id vero quod in primo dubio affertur, quod <i>par in parem non habet imperium</i>, etc.: — dicendum est quod Papa dupliciter definit: scilicet vel ex sola auctoritate papatus, et de his procedit argumentum, et regula quod <i>par in parem non habet imperium</i>; vel ex auctoritate papatus ut substat divinae assistentiae dirigenti in hoc certe et indubie. Et in his Papa ligat seipsum et successores, et definit irrevocabiliter: eo quod <i>sine poenitentia sunt dona Dei</i>, ut dicitur <i>ad Rom. XI</i>. Et ratio est quia in his Papa excedit seipsum: sicut David, in excedendo seipsum, se et omnes vere iudicavit mendaces, dicens: <i>Ego dixi in excessu meo: Omnis homo mendax</i>. Talia autem sunt ea quae sunt fidei: quod scilicet Papa non ex sola papatus auctoritate, sed ex papatu ut substat divinae assistentiae ad Ecclesiae fidem veram docendam, definit iudicialiter in materia fidei, excedens seipsum; et propterea determinat non respectu horum, sed simpliciter et irrevocabiliter, ac ligat se et alios.	which governs the lowest things through the intermediate and the intermediate through the highest [Dionysius]. And by the same reason by which He gave the Church a monarchical principate over the powers of the whole Church, by the same reason He gave to that monarch the power of defining the things that are opportune, without defect: for it befits God less than nature to fail in things necessary. But as to what is brought forward in the first doubt — that <i>an equal has no command over an equal</i>, etc. — it must be said that the Pope defines in two ways: namely, either from the sole authority of the papacy (and of these definitions the argument proceeds, together with the rule that an equal has no command over an equal); or from the authority of the papacy as it stands under the divine assistance directing him in this matter certainly and indubitably. And in the latter the Pope binds himself and his successors, and defines irrevocably: because <i>the gifts of God are without repentance</i>, as is said in Romans 11. And the reason is that in these the Pope exceeds himself: as David, in exceeding himself, truly judged himself and all men to be liars, saying: <i>I said in my excess: Every man is a liar</i>. Now of such a kind are the things that are of faith: namely, the Pope defines judicially in a matter of faith not from the sole authority of the papacy, but from the papacy as it stands under the divine assistance for teaching the Church the true faith, exceeding himself; and therefore he determines not with respect to these persons only, but simply and irrevocably, and binds himself and others.